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26-CIV-00570 ELIZABETH BULJAN VS. ERIC YUAN, ET AL.

LINE 7

ELIZABETH BULJAN
ERIC YUAN

BLAIR KITTLE
RACHEL K. IVANOWSKY

DEFENDANTS: ERIC YUAN, MARIGOLDYZP I LLC, HONGYU ZHANG AND SOLE MANAGING MEMBER OF MARIGOLDYZP I LLC'S SPECIAL MOTION TO STRIKE (SLAPP)

TENTATIVE RULING:

Defendants MarigoldYZP I, LLC, Eric Yuan, and Sherry Yuan (collectively, "Marigold Defendants") have moved for a special motion to strike Plaintiff Elizabeth Buljan's Complaint against them for Malicious Prosecution, and to join the anti-SLAPP motion of their co-defendants, who represented them in the underlying case.

On January 23, 2026, Ms. Buljan filed the instant action for malicious prosecution against the Marigold Defendants and their attorneys, Daniel Chung, Stephen D. Pahl, Catherin S. Robertson, and Spencer Fane LLP (collectively, "Attorney Defendants"). On February 6, 2026, the Court in the underlying action dismissed Ms. Buljan's cross-claims, upon her request. (Kittle Decl., ¶ 21, Ex. 20.)

On March 24, 2026, Plaintiff served the Marigold Defendants with process by substituted service. (See Proofs of Service by Substituted Service, filed April 8, 2026.) On May 15, 2026, the Court entered default against the Marigold Defendants. (See Entry of Default, May 15, 2026.)

On May 22, 2026, the Marigold Defendant filed an Anti-SLAPP motion identical to the motion filed by the Attorney Defendants and stated that they "will and hereby do join in the Special Motion to Strike." (Notice of Special Motion to Strike and Joinder, May 22, 2026.) The entry of default against the Marigold Defendants has not been set aside.

Generally speaking, co-defendants may validly join another defendant's anti-SLAPP motion in malicious prosecution case. (*See Barak v. The Quisenberry Law Firm* (2006) 135 Cal.App.4th 654, 661-62 [finding joinder proper where malicious prosecution defendant was in same relative position as co-defendant attorneys who represented him in underlying case].)

However, California Courts have consistently held that an entry of default terminates a defendant's right to take any further affirmative steps in the litigation, at least until the default is set aside in a proper proceeding. (*Garcia v. Politis* (2011) 192 Cal.App.4th 1474, 1479.)

The Court sees no basis to deviate from that rule here, where the Marigold Defendants in default seek to join the anti-SLAPP motion of the Attorney Defendants. (*See Balla v. Hall* (2021) 59 Cal.App.5th 652, 691 [finding that joining a motion is equivalent to filing one; affirming denial of a defendant's joinder to co-defendant's anti-SLAPP motion where he had previously stipulated to not filing an anti-SLAPP motion in exchange for setting aside default against him].)

Accordingly, the Marigold Defendant's Special Motion to Strike and Request for Joinder in the Attorney Defendants' Special Motion to Strike are DENIED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.



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